

# MERIDIAN MUTUAL INSURANCE COMPANY

## Commercial Multi-Peril Policy — Declarations

|                                   |                                                                                |
|-----------------------------------|--------------------------------------------------------------------------------|
| <b>Policy Number</b>              | CMP-4471928-06                                                                 |
| <b>Named Insured</b>              | Harborview Logistics & Storage, LLC                                            |
| <b>Mailing Address</b>            | 4410 Port Access Road, Newark, NJ 07114                                        |
| <b>Producer</b>                   | Castellan Risk Partners, Agent #88213                                          |
| <b>Policy Period</b>              | 12:01 AM, January 1, 2026 to 12:01 AM, January 1, 2027                         |
| <b>Prior Policy Period</b>        | 12:01 AM, January 1, 2025 to 12:01 AM, January 1, 2026 (Policy CMP-4471928-05) |
| <b>Form of Business</b>           | Limited Liability Company                                                      |
| <b>Governing Rating Territory</b> | Territory 2 — Northeast Metro                                                  |

This Declarations page is issued as part of, and is subject in all respects to, the terms, conditions, definitions, exclusions, and endorsements attached to and forming a part of this policy. In the event of a conflict between this Declarations page and the body of the policy, the terms most recently endorsed onto the policy shall control, as further described in Section 10 (Endorsements).

## Section 1 Definitions

The following terms, wherever they appear in this policy in boldface type, have the meanings stated below. Terms not defined in this section carry their plain, ordinary meaning.

### 1.1 “Policy Period”

The period beginning on the effective date and hour stated in the Declarations and ending on the expiration date and hour stated in the Declarations, or on the earlier termination date of this policy, whichever is sooner.

### 1.2 “Effective Date” — General Use

Except where a specific endorsement states an alternate effective date for that endorsement alone, “effective date” means the inception date of the current Policy Period stated on the Declarations page.

### 1.3 “Occurrence”

An accident, including continuous or repeated exposure to substantially the same general harmful conditions, which results, during the Policy Period, in bodily injury or property damage neither expected nor intended from the standpoint of the insured.

### 1.4 “Deductible”

The amount of loss, stated in Section 4 and as may be amended by endorsement in Section 10, that is borne by the insured before any obligation arises on the part of the Company to indemnify the insured for a covered loss.

### 1.5 “Risk Class”

The classification assigned to the insured’s primary business operations for rating purposes, as shown in the Premium Rate Schedule in Section 6. Harborview Logistics & Storage, LLC is assigned Risk Class C (General Freight Warehousing).

## Section 2 Insuring Agreement

The Company will pay on behalf of the insured all sums that the insured becomes legally obligated to pay as damages because of bodily injury, property damage, or covered business personal property loss to which this insurance applies, provided that the bodily injury, property damage, or loss occurs during the Policy Period and within the coverage territory, and provided further that the claim is reported in accordance with Section 9 (Claims Conditions and Notice Provisions).

This insurance does not apply to any occurrence, loss, or damage that takes place before the inception date or after the expiration date of the Policy Period stated in the Declarations, except as may be extended by an Extended Reporting Period endorsement, if any, attached in Section 10.

### 2.1 Coverage Parts

This policy is composed of three coverage parts, each subject to its own limits, sublimits, and deductibles as set out in Sections 3 and 4:

|                        |                                                 |
|------------------------|-------------------------------------------------|
| <b>Coverage Part A</b> | Commercial General Liability                    |
| <b>Coverage Part B</b> | Business Personal Property (Warehouse Contents) |
| <b>Coverage Part C</b> | Warehouse Legal Liability (Bailee’s Coverage)   |

## Section 3 Coverage Schedule and Limits

The following limits of insurance apply separately to each coverage part, subject to the aggregate limit shown. All limits are per Policy Period unless otherwise noted.

| Coverage Part                  | Per-Occurrence Limit | Annual gate | Aggre- | Sublimit Notes                            |
|--------------------------------|----------------------|-------------|--------|-------------------------------------------|
| A — General Liability          | \$1,000,000          | \$2,000,000 |        | Products/completed ops included           |
| B — Business Personal Property | \$750,000            | \$750,000   |        | \$50,000 sublimit for property in transit |
| C — Warehouse Legal Liability  | \$500,000            | \$1,000,000 |        | \$100,000 sublimit per single customer    |

Note: The Annual Aggregate Limit for Coverage Part B is shared with, and not in addition to, the Per-Occurrence Limit; once \$750,000 in Coverage B losses has been paid in a Policy Period, no further Coverage B payments will be made regardless of the number of additional occurrences.

## Section 4 Deductibles

Deductibles apply on a per-occurrence basis and are the responsibility of the insured before the Company's payment obligation begins. Base deductibles are shown below. See Section 10 (Endorsements) for any subsequent amendment to these amounts — endorsements control over this section where a conflict exists.

| Coverage Part                  | Base Per-Occurrence Deductible | Aggregate Cap     |
|--------------------------------|--------------------------------|-------------------|
| A — General Liability          | \$5,000                        | Not applicable    |
| B — Business Personal Property | \$2,500                        | \$25,000 / period |
| C — Warehouse Legal Liability  | \$10,000                       | Not applicable    |

For comparison, under the prior Policy Period (CMP-4471928-05, expired January 1, 2026), the Coverage B per-occurrence deductible was \$5,000 before being revised at renewal. The prior period's deductible does not apply to occurrences during the current Policy Period.

## Section 5 Waiting Periods and Conditions Precedent

No waiting period applies to Coverage Parts A or C. Coverage Part B (Business Personal Property) is subject to a 15-day waiting period following the inception of the Policy Period before losses due to spoilage or temperature-related damage are covered; this waiting period does not apply to losses from fire, theft, windstorm, or water damage, which are covered from inception.

A claim will not be considered validly reported, and no payment obligation arises, unless the conditions in Section 9 are satisfied in full, including the 60-day notice requirement.

## Section 6 Premium Rate Schedule

The base annual premium for each coverage part is calculated by multiplying the applicable base rate by the rate multiplier corresponding to the insured's Risk Class and Rating Territory, shown in the table below. This schedule applies to all policies bound or renewed on or after January 1, 2025.

| Risk Class        | Class Description                                           | Terr. 1 (Rural) | Terr. 2 (NE Metro) | Terr. 3 (Coastal) |
|-------------------|-------------------------------------------------------------|-----------------|--------------------|-------------------|
| Class A           | Light Office / Administrative                               | 0.85            | 1.00               | 1.10              |
| Class B           | Light Manufacturing                                         | 1.05            | 1.20               | 1.35              |
| Class C           | General Freight Warehousing                                 | 1.15            | 1.32               | 1.48              |
| Class D           | Cold Storage Warehousing                                    | 1.40            | 1.60               | 1.85              |
| Class E           | Hazardous Materials Storage                                 | 2.10            | 2.45               | 2.90              |
| Class F           | Heavy Manufacturing                                         | 1.90            | 2.15               | 2.50              |
| Endorsed Class A1 | Reserved sub-classification, see underwriting manual note 1 | n/a             | n/a                | n/a               |
| Endorsed Class B1 | Reserved sub-classification, see underwriting manual note 2 | n/a             | n/a                | n/a               |
| Endorsed Class C1 | Reserved sub-classification, see underwriting manual note 3 | n/a             | n/a                | n/a               |
| Endorsed Class D1 | Reserved sub-classification, see underwriting manual note 4 | n/a             | n/a                | n/a               |
| Endorsed Class E1 | Reserved sub-classification, see underwriting manual note 5 | n/a             | n/a                | n/a               |
| Endorsed Class F1 | Reserved sub-classification, see underwriting manual note 6 | n/a             | n/a                | n/a               |
| Endorsed Class G1 | Reserved sub-classification, see underwriting manual note 7 | n/a             | n/a                | n/a               |

## Section 6 — Premium Rate Schedule (continued)

| Risk Class        | Class Description                                            | Terr. 1 (Rural) | Terr. 2 (NE Metro) | Terr. 3 (Coastal) |
|-------------------|--------------------------------------------------------------|-----------------|--------------------|-------------------|
| Endorsed Class H1 | Reserved sub-classification, see underwriting manual note 8  | n/a             | n/a                | n/a               |
| Endorsed Class I1 | Reserved sub-classification, see underwriting manual note 9  | n/a             | n/a                | n/a               |
| Endorsed Class J1 | Reserved sub-classification, see underwriting manual note 10 | n/a             | n/a                | n/a               |

\* Territory 3 multipliers include a 12% coastal flood loading, reviewed annually by the underwriting committee. † Class E and Class F risks require prior approval from the Excess & Surplus Lines desk regardless of computed multiplier. Harborview Logistics & Storage, LLC is rated as Class C, Territory 2, for a base multiplier of 1.32.

## Section 7 Coinsurance Schedule (Coverage Part C — Warehouse Legal Liability)

Losses under Coverage Part C are subject to coinsurance based on whether the damaged customer goods were stored at a Meridian-approved (“in-network”) third-party cold-chain facility or a non-approved (“out-of-network”) facility at the time of loss.

| Storage Facility Type                 | Coinsurance | Copay/Claim | Annual Max |
|---------------------------------------|-------------|-------------|------------|
| In-Network Facility                   | 10%         | \$1,000     | \$15,000   |
| Out-of-Network (approved exception)   | 25%         | \$2,500     | \$40,000   |
| Out-of-Network (no exception on file) | 50%*        | \$5,000     | No maximum |

\* The 50% coinsurance rate for unapproved out-of-network facilities is waived and reduced to 25% if the insured can demonstrate the facility met Meridian’s cold-chain standards at the time of loss, per underwriting bulletin UW-2025-14. This exception must be requested in writing within 30 days of the claim being reported.

## Section 8 Exclusions

This insurance does not apply to:

1. Loss or damage caused by or resulting from war, insurrection, or government seizure.
2. Loss arising from the insured’s intentional or willful failure to maintain refrigeration equipment in operable condition after having received written notice of a defect.
3. Loss occurring during any period the Policy Period had lapsed for nonpayment of premium, even if later reinstated, unless the reinstatement endorsement specifically states retroactive coverage applies.
4. Punitive or exemplary damages, fines, or penalties, wherever such damages are insurable under applicable law.
5. Loss or damage to property in storage at any facility not listed in the insured’s warehouse schedule on file with the Company as of the date of loss, unless added by endorsement prior to the loss.

## Section 9 Claims Conditions and Notice Provisions

As a condition precedent to coverage, the insured must give the Company written notice of any occurrence that may result in a claim within 60 days after the occurrence becomes known to the insured’s risk manager of record. Notice must include the date and location of the occurrence, and a summary of the resulting injury, damage, or loss.

The insured must also submit a signed, sworn Proof of Loss within 90 days of the Company’s request. Failure to submit a timely Proof of Loss will not void coverage if the insured can demonstrate good cause for the delay and the Company was not materially prejudiced.

All claims must reference the Policy Number shown on the Declarations page and the coverage part(s) implicated. The Company will acknowledge receipt of a properly reported claim within 10 business days.

## Section 10 Endorsements

The following endorsements are attached to and form a part of this policy. Where an endorsement conflicts with the base policy language in Sections 1 through 9, the endorsement controls.

### Endorsement No. 1 — Deductible Buy-Down (Coverage Part B)

Effective March 1, 2026, and in consideration of additional premium of \$1,850, Section 4 (Deductibles) is amended solely as it applies to Coverage Part B (Business Personal Property): the Base Per-Occurrence Deductible for Coverage Part B is reduced from \$2,500 to **\$1,000** for all occurrences taking place on or after March 1, 2026. The Aggregate Deductible Cap for Coverage Part B remains unchanged at \$25,000 per Policy Period. This endorsement does not apply to occurrences taking place before March 1, 2026, which remain subject to the original \$2,500 deductible shown in Section 4.

### Endorsement No. 2 — Additional Named Insured

Harborview Cold Chain Solutions, Inc., an affiliated entity, is added as an Additional Named Insured for Coverage Parts B and C only, effective January 1, 2026. No change is made to any limit, deductible, or coinsurance provision by virtue of this endorsement.

### Endorsement No. 3 — Warehouse Schedule Amendment

Effective April 15, 2026, the facility located at 220 Dockside Avenue, Bayonne, NJ is added to the insured's warehouse schedule on file with the Company, and is designated an In-Network Facility for purposes of the coinsurance schedule in Section 7.

### Endorsement No. 4 — Notice Period for Coverage Part C Claims

For claims made under Coverage Part C (Warehouse Legal Liability) only, the insured must give the Company written notice within 30 days of the occurrence becoming known to the insured's risk manager of record.

## Section 11 Miscellaneous Conditions

This policy is non-assessable. No provision of this policy may be waived except by written endorsement signed by an authorized representative of the Company. Cancellation by the insured requires 30 days written notice; cancellation by the Company for reasons other than nonpayment of premium requires 60 days written notice.

Countersigned this 18th day of December, 2025, by an authorized representative of Meridian Mutual Insurance Company.